

1.	23CV1460	MARK SCHNEIDER VS. GOLD RUSH ENERGY SOLUTIONS
ATTORNEY WITHDRAWAL		

This matter was continued from August 21, 2026. The tentative issued on August 21, 2026, is amended as follows:

Counsel for Defendant, Gold Rush Energy Solutions (“Defendant”), and Cross-Complainant, Jordan Lykins (“Cross-Complainant”), has filed motions to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362.

A declaration on Judicial Council Form MC-052 accompanies each motion, as required by California Rules of Court, Rule 3.1362, stating that there is a breakdown of the attorney-client relationship with each client that has rendered it unreasonably difficult to carry out representation effectively. The declaration for Defendant’s motion is not signed.

Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362 allow an attorney to withdraw after notice to the client. Proof of service of the motion on Cross-Complainant at her last known was filed on July 22, 2026. Counsel for Defendant indicates that service has been effectuated by mail at Defendant’s last known address; however, the Declaration is unsigned attesting the foregoing is true and correct under penalty of perjury.

The Findings and Order sections in each of Counsel's proposed Order are incomplete as required by California Rules of Court, Rule 3.1362(e).

TENTATIVE RULING #1:

ABSENT OBJECTION, THE MOTIONS ARE GRANTED, CONTINGENT ON COUNSEL’S FILING OF PROPOSED ORDERS (FORM MC-053) THAT MEET THE REQUIREMENTS OF CALIFORNIA RULES OF COURT, RULE 3.1362(E) AND THE SIGNED DECLARATION FOR DEFENDANT’S MOTION. COUNSEL IS DIRECTED TO SERVE A COPY OF THE SIGNED ORDERS ON THE CLIENT AND ALL PARTIES THAT HAVE APPEARED IN THE CASE IN ACCORDANCE WITH CALIFORNIA RULES OF COURT, RULE 3.1362(e).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO

COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.